

1.

CASE #	CASE NAME	HEARING NAME
CVRI2301029	FREEDOM MORTGAGE CORPORATION vs ROSS	MOTION TO AMEND JUDGMENT

Tentative Ruling:

Motion granted. Proposed Judgment submitted has been signed and ordered filed. Moving party to provide notice to all parties.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2403763	HERNANDEZ vs BEAUTY ON A BUDGET	MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION

Tentative Ruling:

Moving party: Defendants Issam J. Rafeedie and Lydia Rafeedie
Responding party: Plaintiff Hortencia Duarte Hernandez

Plaintiff Hortencia Duarte Hernandez initiated this personal injury action on June 28, 2024 against Defendants Beauty on a Burdge ("Beauty"), Issam J. Rafeedie and Lydia L. Rafeedie (collectively, the "Rafeedies"). The Form Complaint alleges that on January 15, 2024, Plaintiff was at Beauty located in Riverside (the "Premises"), walking towards the restroom when "she stepped on unmarked and/or unsecure wires, cables and/or similar objects causing her to trip and fall, thereby causing Plaintiff to endure severe injury and pain" (the "Incident"). (Compl., pg. 6.) The Complaint further alleges Defendants had exclusive control of Beauty and negligently owned, maintained, managed, and operated the Premises and failed to warn of the dangerous condition. The Complaint asserts causes of action for (1) general negligence and (2) premises liability.

Trial is not currently set.

The Rafeedies now move for summary judgment or, in the alternative, summary adjudication of Plaintiff's Complaint on the grounds: (1) they do not owe Plaintiff a duty because they do not control the interior of the Premises where the Incident occurred; (2) their actions were not a substantial factor in causing Plaintiff's injuries; and (3) Plaintiff tripped over a hairdryer cord that belongs to third party Teresa Robles (Robles), which was the independent intervening force breaking the chain of causation.

In opposition, Plaintiff maintains the Rafeedies have a nondelegable duty to maintain the Premises in a reasonably safe condition because they have control of the